

SENATE No. 2907

The Commonwealth of Massachusetts

PRESENTED BY:

Pavel M. Payano

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing credible service for eligible police officers and firefighters.

PETITION OF:

NAME:

Pavel M. Payano

DISTRICT/ADDRESS:

First Essex

SENATE No. 2907

By Mr. Payano, a petition (accompanied by bill, Senate, No. 2907) (subject to Joint Rule 12) of Pavel M. Payano for legislation to establish credible service for eligible police officers and firefighters. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing credible service for eligible police officers and firefighters.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 (2) (c) of chapter 32 of the General Laws, as appearing in the
2 2022 Official Edition, is hereby amended by adding at the end thereof, the following:-

3 In the case of any member of the police and fire department who is part of the
4 contributory retirement system in a municipality within the Commonwealth of Massachusetts,
5 shall be eligible for credible service for the time the member would have served but for being
6 bypassed on an eligible Civil Service hiring list before being initially appointed as a police
7 officer or firefighter.

8 SECTION 2. The bypassed member shall meet the following criteria. (a) the member was
9 on an eligible list to be hired as a police officer or firefighter, (b) the member was skipped or
10 bypassed for another person with a lower rank on the civil service hiring list for a municipality
11 (c) the member was granted relief by an order or agreement approved by the Civil Service
12 Commission, pursuant to MGL c. 534 of the Acts of 1976 as amended by c. 310 of the Acts of

13 1993, after a by-pass appeal, placing the member back on the eligible hiring list, and (d) member
14 accepts the first available permanent appointment offered to the member by the municipality.

15 SECTION 3. The bypassed member shall be credited with active full-time service from
16 the bypass date to the date of the member's permanent appointment so as long as the member
17 pays into the annuity savings fund of the retirement system an amount equal to the accumulated
18 regular deductions that the member would have paid together with regular interest, at the rate of
19 compensation the member would have received during the credible service period.

20 SECTION 4. This act shall take effect 90 days after enactment.